

22SMCV02668 22SMCV02668

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TENTATIVE RULING

July 14, 2026

22SMCV02668 (Kimiabakhsh v. Starbucks Corporation, et. al.)

RELEVANT BACKGROUND

On December 12, 2022, plaintiff Michelle Joy Kimiabakhsh (Plaintiff) filed her complaint against Starbucks Corporation; Ralphs Grocery Company; The Kroger Co.; Target Corporation (Target); Westwood Market Place; and ABM Parking Westwood. Plaintiff filed a first amended complaint (FAC) on September 28, 2023. Plaintiff alleges that she was injured due to a slip-and-fall when she was walking from the parking lot area of the commercial shopping center located at 10861 Weyburn Avenue, Los Angeles, California 90024 on the evening of February 23, 2022.

Cross-Complaints

were subsequently filed by Target, Ralphs, FM, Starbucks, and TIAAA. Target's operative second amended cross complaint (SACC) was filed on October 18, 2024. TIAAA's operative first amended cross complaint (FACC) was filed on August 19, 2025.

On June 5, 2025, Plaintiff agreed to resolve her claims against Ralphs, Starbucks, TIAAA, ABB, and FM. Plaintiff's settlement rendered the cross-claims between TIAAA and Target the only remaining issues in this action.

INSTANT MOTION

On February 3, 2026, Target filed the instant motion to compel TIAAA's responses to Requests for Production, Set One, Nos. 9-15; and request for monetary sanctions in the amount of \$1,829.71. TIAAA filed an opposition, and Target filed a reply.

DISCUSSION

(a) On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

(1) A statement of compliance with the demand is incomplete.

(2) A representation of inability to comply is inadequate, incomplete, or evasive.

(3) An objection in the response is without merit or too general.

...

(h) Except as provided in subdivision (j), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(Code Civ. Proc., § 2031.310, subd. (a), (h).)

Here,

Target moves to compel TIAAA's further responses to Requests for Production, Set One, Nos. 9-15. The requests were served on May 20, 2025. (Levak Decl. ¶ 5, Exhibit 1.) TIAAA received four deadline extensions and served their responses on

August 5, 2025, without the signed verifications or document production. (Levak Decl. ¶ 6, Exhibit 2.) After reviewing TIAAA's discovery responses, Target determined that TIAAA's discovery responses were deficient and sent a Meet and Confer Letter dated September 4, 2025, which requested that TIAAA supplement its responses to Demand for Production of Documents, Set One, Demand Nos. 9-15, as well as provide the document production and verifications. (Levak Decl. ¶7, Exhibit 3.) To date, TIAAA has not provided supplemental responses, verifications, or the document production and TIAAA's responses to Target's Demand for Production of Documents, Set One, Demand Nos. 9-15 remain evasive. (Levak ¶ 9.)

In opposition, TIAAA states that the instant motion is moot because it has agreed to serve verified, code-compliant supplemental responses to Demand for Production of Documents, together with a privilege log identifying any responsive documents withheld on the basis of privilege and to complete its production of responsive, non-privileged documents within twenty (20) days of the hearing on the Motion or such other time as the Court may order. (Arevalo Dec., ¶ 19.) To the extent any documents were inadvertently not produced, TIAAA states it will complete production with its supplemental responses. TIAAA served its verifications on June 26, 2026. (Arevalo Decl. ¶ 10; DeSantis Decl. ¶ 4, Exhibit F.) TIAAA also represents that it remains willing to meet and confer with Target regarding the entry of a stipulated protective order to facilitate the exchange of the documents sought in the requests for production at issue. (Arevalo Decl. ¶ 20.)

In reply, Target argues that the instant motion is not moot because a promise to produce supplemental responses is not sufficient. The Court agrees with Target.

The Court finds that the instant motion is not moot since TIAAA has not served supplemental responses prior to the hearing. Further, as set forth in detail below, the Court finds that there is good cause to compel TIAAA's further responses and TIAAA's objections are without merit.

No. 9 requests documents related to any insurance policies for damages, claims, or actions that arise out of the subject of Plaintiff's complaint. The Court finds that TIAAA's

objections to this request are without merit. The request seeks discoverable information that is tailored to issues relevant to the instant action. It is not vague, ambiguous, unclear, or overbroad. Nor has TIAAA provided any basis to support their attorney-client privilege and attorney-work product privilege objections. The Court is also unpersuaded by TIAAA's argument concerning the Insurance Information and Privacy Protection Act, as nothing in the Insurance Code provisions assist TIAAA's argument. (See *Irvington-Moore, Inc. v. Superior Ct.* (1993) 14 Cal.App.4th 733, 741.) Accordingly, Target's motion is GRANTED with respect to this request.

No.

10 requests documents related to any insurance policy or policies, including declaration pages, certificates, endorsements, exclusions, etc. through which TIAAA was or might be insured in any manner (primary, pro-rata or excess liability coverage) for the damages, claims, or actions that arise out of the subject of TIAAA's cross-complaint. The Court finds that TIAAA's objections to this request are without merit. The request seeks discoverable information that is tailored to issues relevant to the instant action. It is not vague, ambiguous, unclear, or overbroad. Nor has TIAAA provided any basis to support their attorney-client privilege and attorney-work product privilege objections. The Court is also unpersuaded by TIAAA's argument concerning the Insurance Information and Privacy Protection Act, as nothing in the Insurance Code provisions assist TIAAA's argument. (See *Irvington-Moore, Inc. v. Superior Ct.* (1993) 14 Cal.App.4th 733, 741.) Accordingly, Target's motion is GRANTED with respect to this request.

No.

11 requests documents related to any insurance policy or policies, including declaration pages, certificates, endorsements, exclusions, etc., through which TIAAA listed Target Corporation as an additional insured in any manner (primary, pro-rata or excess liability coverage) for the damages, claims, or actions that arise out of the subject of PLAINTIFF's Complaint. The Court finds that TIAAA's objections to this request are without merit. The request seeks discoverable information that is tailored to issues relevant to the instant action. It is not vague, ambiguous, unclear, or overbroad. Nor has TIAAA provided any basis to support their attorney-client privilege and attorney-work product privilege objections. The Court is also unpersuaded by TIAAA's argument concerning the Insurance Information and Privacy Protection Act, as nothing in the Insurance Code provisions assist TIAAA's argument. (See *Irvington-Moore, Inc. v. Superior Ct.* (1993) 14 Cal.App.4th 733, 741.) Accordingly, Target's motion

is GRANTED with respect to this request.

No.

12 requests documents related to any insurance policy or policies, including declaration pages, certificates, endorsements, exclusions, etc., through which TIAAA listed Target Corporation as an additional insured in any manner (primary, pro-rata or excess liability coverage) for the damages, claims, or actions that arise out of the subject of TIAAA's Cross-complaint. The Court finds that TIAAA's objections to this request are without merit. The request seeks discoverable information that is tailored to issues relevant to the instant action. It is not vague, ambiguous, unclear, or overbroad. Nor has TIAAA provided any basis to support their attorney-client privilege and attorney-work product privilege objections. The Court is also unpersuaded by TIAAA's argument concerning the Insurance Information and Privacy Protection Act, as nothing in the Insurance Code provisions assist TIAAA's argument. (See *Irvington-Moore, Inc. v. Superior Ct.* (1993) 14 Cal.App.4th 733, 741.) Accordingly, Target's motion is GRANTED with respect to this request.

No.

13 requests all contractual agreements between TIAAA and Target related to the Subject Property. The Court finds that TIAAA's objections to this request are without merit. The request seeks discoverable information that is tailored to issues relevant to the instant action. It is not vague, ambiguous, unclear, or overbroad. Nor has TIAAA provided any basis to support their attorney-client privilege and attorney-work product privilege objections. The Court is also unpersuaded by TIAAA's argument concerning the Insurance Information and Privacy Protection Act, as nothing in the Insurance Code provisions assist TIAAA's argument. (See *Irvington-Moore, Inc. v. Superior Ct.* (1993) 14 Cal.App.4th 733, 741.) Accordingly, Target's motion is GRANTED with respect to this request.

No.

14 requests policies and procedures related to control, management, maintenance, and repair of the subject property. The Court disagrees with TIAAA's contention that the demand is vague and overbroad as to the terms "policies and procedures," "control," "management," "maintenance," and "repair." Additionally, TIAAA has not provided any basis to support the contention that this request implicates proprietary materials. Accordingly, Target's motion is GRANTED with respect to this request.

No.

15 requests documents related to ownership of the subject property, February 2020 through February 2024. The Court finds that TIAAA's objections are without merit and disagrees with its contention that documents reflecting ownership of real property are generally matters of public record equally available to Target. The Court is also unpersuaded by the argument that the four-year scope is overly broad. Accordingly, Target's motion is GRANTED with respect to this request.

Based

on the foregoing, Target's motion to compel TIAAA's further responses to Requests for Production, Set One, Nos. 9-15, is GRANTED.

Target's

request for monetary sanctions is GRANTED in full. The Court finds that monetary sanctions are appropriate, and the amount requested (\$1,829.71) is reasonable. (Code Civ. Proc., § 2031.310, subd. (h); Levak Decl. ¶ 12.) The Court does not find that TIAAA acted with substantial justification or that other circumstances make the imposition of the sanction unjust.